HEADNOTE

"1. The person skilled in the art will take the function of a feature, that is described solely in terms of physical properties, into account when interpreting the claim in order to determine the scope of protection. The scope of protection therefore covers only those embodiments which are capable of performing the function attributed to them by the patent.
2. If a counterclaim for revocation is filed conditionally and the condition is not fulfilled, the parties shall bear their own costs incurred in respect of the counterclaim for revocation, because if the counterclaim is not decided, neither party wins or loses."

COURT
Local Division in Hamburg

PROCEEDINGS
Infringement action and Counterclaim for revocation

PATENT
EP 4 249 647

ELECTROLYTIC MEDIUM, ELECTROPOLISHING PROCESS USING SUCH ELECTROLYTIC MEDIUM AND DEVICE TO CARRY IT OUT

KEYWORDS
Claim construction
Infringement of the patent in suit
Cost allocation in conditional counterclaims...

SUMMARY
The Local Division in Hamburg ruled on an infringement action and counterclaim for revocation. The patent at issue relates to an electrolytic medium, electropolishing process using such electrolytic medium and device to carry it out. According to the headnotes of the decision, claim interpretation requires considering the function of features. Features described solely in physical terms must still be understood by reference to their function. This means the scope of protection covers only embodiments capable of performing the attributed function. Furthermore, if a conditional counterclaim for revocation is filed but the condition is not fulfilled, each party bears its own costs incurred for the counterclaim. In such cases, neither party wins or loses because the counterclaim remains undecided.